

5	Mohler vs. COUNTRY OAKS PARTNERS, LLC 2024-01406588	1. Demurrer to Amended Complaint 2. Demurrer to Amended Complaint 3. Motion to Strike Complaint 4. Case Management Conference MOTION NO. 1. Defendant Sun Mar Management Services’ demurs to the first cause of action alleged in the Second Amended Complaint (“SAC”) filed by Plaintiffs Alicia Mohler, by and through her Successor-in-Interest Deborah Mohler; and Deborah Moher. <i>First Cause of Action for Dependent Adult Abuse:</i> In ruling on Defendant’s prior demurrer to the First Amended Complaint (“FAC”), the Court found that Plaintiffs adequately alleged all elements of the claim except for ratification by officers, directors, or managing agents under Civil Code section 3294, subdivision (b). To the extent a plaintiff seeks to hold a corporate defendant liable for the acts or omissions of its employees, the plaintiff must satisfy the standards set forth in Civil Code section 3294(b). (Welf. and Inst. Code, § 15657(c).) Welfare & Institutions Code section 15657, subdivision (c) states: “The standards set forth in subdivision (b) of Section 3294 of the Civil Code regarding the imposition of punitive damages on an employer based upon the acts of an employee shall be satisfied before any damages or attorney's fees permitted under this section may be imposed against an employer.” Civil Code Section 3294, subdivision (b) states: “An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or
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		authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice.” (Civ. Code, § 3294(b).) The SAC sufficiently alleges ratification in paragraphs 10, 11, 12, 13 and 17. Tentative Ruling: The demurrer to the first cause of action is OVERRULED. Moving Defendant to give notice. MOTION NO. 2: Defendant Sun Meridian Management Services LLC’s demurs to the first cause of action alleged in the Second Amended Complaint filed by Plaintiffs Alicia Mohler, by and through her Successor-in-Interest Deborah Mohler; and Deborah Moher. <i>First Cause of Action for Dependent Adult Abuse:</i> In ruling on Defendant’s prior demurrer to the First Amended Complaint (“FAC”), the Court found that Plaintiffs adequately alleged all elements of the claim except for ratification by officers, directors, or managing agents under Civil Code section 3294, subdivision (b). To the extent a plaintiff seeks to hold a corporate defendant liable for the acts or omissions of its employees, the plaintiff must satisfy the standards set forth in Civil Code section 3294(b). (Welf. and Inst. Code, § 15657(c).) Welfare & Institutions Code section 15657, subdivision (c) states: “The standards set forth in subdivision (b) of Section 3294 of the Civil Code regarding the imposition of punitive damages on an employer based upon the acts of an employee shall be satisfied before any damages or attorney's fees permitted under this section may be imposed against an employer.” Civil Code Section 3294, subdivision (b) states: “An employer shall not be
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	liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice.” (Civ. Code, § 3294(b).) The SAC sufficiently alleges ratification in paragraphs 10, 11, 12, 13 and 17. Tentative Ruling: The demurrer to the first cause of action is OVERRULED. Moving Defendant to give notice. MOTION NO. 3: Defendants Sun Mar Management Services and Sun Meridian Management Services LLC’s move to strike portions of the Second Amended Complaint. <i>Punitive Damages:</i> Defendants move to strike the allegations and prayer for punitive damages as to the first cause of action. Civil Code Section 3294, subdivision (a) provides for punitive damages: “In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.” Section 3294, subdivision (c) defines malice, oppression and fraud as follows: “(1) ‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct
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		which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. [¶] (2) ‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. [¶] (3) ‘Fraud’ means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” The SAC alleges that “Knowing of MOHLER’s repeated urinary tract infections, dehydration, sepsis, and declining condition, and despite clear notice that existing staffing levels were inadequate to meet her basic needs, DEFENDANTS’ managing agents... failed to take corrective action.” (SAC ¶69.) These allegations are sufficient to allege conduct demonstrating conscious disregard of the rights or safety of others. Tentative Ruling: The request to strike punitive damages is DENIED <i>Attorneys’ Fees:</i> Defendants move to strike the request for attorneys’ fees as to the first cause of action. Based on the court’s overruling of Defendants’ demurrer to the first cause of action, the request to strike attorneys’ fees requested by Plaintiffs in the first cause of action is DENIED. Moving Defendants to give notice.
6	Ornelas vs. Madison Reed, Inc. 2025-01494153	Motion to Compel Arbitration